

24CHCV04347 24CHCV04347

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Case Number: 24CHCV04347 Hearing Date: July 20, 2026 Dept: F47

Dept. F47

Date: 7/20/26

TRIAL DATE: 3/22/27

Case #24CHCV04347

MOTION TO EXTEND

THE TIME LIMIT FOR PLAINTIFF'S DEPOSITION

Motion filed on 3/17/26.

MOVING PARTY: Defendant MCP Sayre, LLC

RESPONDING PARTY: Plaintiff Silvia Solorzano

NOTICE: ok

RELIEF REQUESTED: An order extending the time limit for the deposition of Plaintiff Silvia Solorzano past the 7 hour limit, to add an additional 7 hours.

RULING: The motion is granted, in part.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of Plaintiff Silvia Solorzano's (Plaintiff) tenancy in a residential building located at 13910 Sayre Street, Unit 14, in

Sylmar, California (the Property) which is alleged to be owned, managed and/or operated by Defendant MCP Sayre, LLC (Defendant). Plaintiff has lived at the Property from 6/1/19 to the present. Plaintiff alleges that the Property suffers from defective water pipes, plumbing issues, rats, roaches, bedbugs, rodents, spiders, inoperable windows and doors caused by deterioration, holes "all over" the unit, faulty electrical fittings that sparked every time something is connected to it, deteriorating walls, mold in the living room, bedroom, hallway, closet, restroom walls, deteriorated bathroom walls and floors. Plaintiff alleges that she became sick with rashes and breathing issues due to the alleged conditions in the Property. Plaintiff also alleges damaged toilet and bathtub, holes around the AC Unit, damaged/clogged sinks, damaged and deteriorated carpets, a non-functional heater, damaged electrical appliances, deteriorated cabinets, broken tiles, general sanitary conditions of the unit, broken bedroom windows that did not close all the way, hot water shut offs with no notice which allegedly remained for over a week, broken garbage disposal, and closet doors that get stuck and do not slide.

As a result, on 11/25/24, Plaintiff filed this action against Defendant alleging causes of action for: (1) Breach of Implied Warranty of Habitability; (2) Negligence; (3) Nuisance; (4) Breach of Quiet Enjoyment; (5) Intentional Infliction of Emotional Distress; (6) Unruh Civil Rights Act (Civil Code 51) and (7) Anti-Harassment Statute (Civil Code 1940.2). On 4/7/25, after Defendant's demurrer was overruled and motion to strike was denied, Defendant answered the complaint.

On 11/12/25, Defendant took the first session of Plaintiff's deposition which lasted approximately 5 hours and 30 minutes. On 3/9/26, the second session of Plaintiff's deposition was taken for 1 hour and 30 minutes. Plaintiff refused to extend the time for her deposition beyond the 7 hour statutory time limit. Therefore, on 3/17/26, Defendant filed and served the instant motion seeking an order extending the time limit for the deposition of Plaintiff past the 7 hour limit, to add an additional 7 hours. Plaintiff has opposed the motion and Defendant has filed a reply to the opposition.

ANALYSIS

CCP 2025.290(a) provides:

“Except as provided in subdivision

(b), or by any court order, including a case management order, a deposition examination of the witness by all counsel, other than the witness' counsel of record, shall be limited to seven hours of total testimony. The court shall allow additional time, beyond any limits imposed by this section, if needed to fairly examine the deponent or if the deponent, another person, or any other circumstance impedes or delays the examination.”

None of the exceptions set forth in subsection (b) of CCP 2025.290 apply to Plaintiff's deposition.

Defendant has failed to establish that issues in this case and the fact that an interpreter was/is necessary warrant doubling the 7 hour statutory time limit for Plaintiff's deposition. However, the Court finds that the foregoing does warrant an additional 3.5 hours of time to fairly complete the examination of Plaintiff.

CONCLUSION

The motion is granted.

The time limit for the deposition of Plaintiff Silvia Solorzano is extended 3.5 hours past the 7 hour limit set forth in CCP 2025.290(a), not an additional 7 hours as requested in the motion.